Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 480

RESOLUTION RESPECTFULLY REQUESTING THE DEPARTMENT OF EDUCATION TO FAST-TRACK THE PREPARATION OF THE IMPLEMENTING RULES AND REGULATIONS OF REPUBLIC ACT NO. 11650 OR "AN ACT INSTITUTING A POLICY OF INCLUSION AND SERVICES FOR LEARNERS WITH DISABILITIES IN SUPPORT OF INCLUSIVE EDUCATION, ESTABLISHING INCLUSIVE LEARNING RESOURCE CENTERS OF LEARNERS WITH DISABILITIES IN ALL SCHOOL DISTRICTS, MUNICIPALITIES AND CITIES, PROVIDING FOR STANDARDS, APPROPRIATING FUNDS THEREFOR, AND FOR OTHER PURPOSES"

WHEREAS, pursuant to the Republic Act No. 11650, otherwise known as *"Instituting a Policy of Inclusion and Services for Learners with Disabilities in Support of Inclusive Education Act"*, states that all public schools nationwide are required to identify learners with special needs and provide these learners with free basic and quality education, was signed by President Duterte on March 11, 2022;

WHEREAS, Section 5 of Republic Act No. 11650 provides that all schools, whether public or private, shall ensure equitable access to quality education to every learner with disability, such that no learner shall be denied admission based on their disability;

WHEREAS, Section 59 of the Bangsamoro Autonomy Act No. 18, also known as the *"Bangsamoro Education Code of 2021"*, acknowledged that all children and youth can learn and that all children and youth learners need support, there shall be a framework of inclusive education to be adopted as part of the Basic Education Learning Systems designed to foster the development of inclusive and supportive centers of learning that enables all learners to participate actively in the education process, in particular, those learners who experience or have experienced barriers to learning and development;

WHEREAS, this newly passed law advocates for inclusive education, where persons with disabilities lauded the passage in 2022 of such landmark legislation, which would pave the way for improved programs and services for learners with disabilities;

WHEREAS, Section 32 of Republic Act No. 11650 provides that within ninety (90) days from the effectivity of this Act, the Department of Education (DepEd), in consultation with the Department of Social Welfare and Development (DSWD), the Department of Health (DOH) and other concerned government agencies and education stakeholders, shall issue the rules and regulations implementing the provisions of this Act. The Implementing Rules and Regulations (IRR) issued pursuant to this section shall take effect thirty (30) days after its publication in a newspaper of general circulation;

WHEREAS, the same section provides that copies of the IRR and the roadmap referred to in Section 14 of the same law shall be transmitted to the Chairperson of the Committees on Basic Education of both Houses of Congress not later than six (6) months and one (1) year, respectively, from the effectivity of this Act;

WHEREAS, the IRR provides clear guidelines and procedures that help ensure that the law is

implemented consistently across different settings;

WHEREAS, despite being hailed as a beacon of hope for children with disabilities, the government has yet to release its IRR for the aforementioned law, which would have been within reach at the time, to ensure students with disabilities can access quality education;

WHEREAS, the lack of an IRR makes it difficult to recognize whether the schools will comply with its provisions, especially in finding and identifying students with special needs;

WHEREAS, with the delay in the release of its IRR beyond its presumed period, the actual and full impact of the law has yet to benefit parents of the students whose children struggle to adjust in a regular classroom;

WHEREAS, without the IRR, there is no clarity on which entities will be held accountable once students with special needs are discriminated against attending regular classrooms;

WHEREAS, the law may not immediately address the needs of an estimated 60 percent of Filipino children with disabilities who were out of school according to the DSWD *Listahanan* of 2019 data;

WHEREAS, learners with disabilities are often overlooked in public education, which can result in low academic competence for these learners, making them less able to live full and meaningful lives;

WHEREAS, this law provides the resources that allow learners with disabilities to be provided with individualized learning programs based on their current skills and needs, within the school setting:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To respectfully request the Department of Education to fast-track the drafting of the Implementing Rules and Regulations of Republic Act No. 11650 or *"An Act instituting a policy of inclusion and services for learners with disabilities in support of inclusive education, establishing inclusive learning resource centers of learners with disabilities in all school districts, municipalities and cities, providing for standards, appropriating funds therefor, and for other purposes."*

RESOLVED, FURTHER, To present this Resolution to the DepEd Central Office, for information.

ADOPTED, *Muharram* 17, 1446/July 23, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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